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Case Name: *J.C. v. Watchtower Bible and Tract Society of New York, Inc., et al.*

Case No.: 22CV407932

SUPERIOR COURT OF CALIFORNIA

COUNTY OF SANTA CLARA

Defendant West Congregation of Jehovah’s Witnesses, San Jose, CA, Inc. (“West Congregation”) moves under Code of Civil Procedure Section 437c for summary judgment or in the alternative summary adjudication of Plaintiff J.C.’s (“Plaintiff”) Second Amended Complaint. Notice of Motion (the “Motion”) at 1:28-2:3 (filed: Jan. 26, 2026). This Motion is made on the following grounds:

1. There is no triable issue of material fact as to Plaintiff’s claims against West Congregation because West Congregation did not owe Plaintiff a duty of care and therefor West Congregation is entitled to summary judgment.
2. There is no triable issue of material fact as to Plaintiff’s third cause of action for negligent hiring, supervision, or retention and thus, West Congregation is entitled to summary adjudication as a matter of law.
3. There is no triable issue of material fact as to Plaintiff’s fourth cause of action for negligence and thus, West Congregation is entitled to summary adjudication as a matter of law.

Id. at 2:10-18.

The Motion came on for hearing on August 28, 2026, at 9:00 AM in Department 16. After reviewing all the papers and the record, including all the evidence and separate statements and authorities submitted by each party, and giving counsel for all parties the full and fair opportunity to be heard, the Court finds and rules as follows.

Fact Allegations & Procedural Posture

Plaintiff, J.C.,⁵ brings this Second Amended Complaint (“SAC”) against Defendants Watchtower Bible and Tract Society of New York, Inc. (“Watchtower”), West Congregation of Jehovah’s Witnesses, San Jose, CA, Inc. (“West Congregation”), Sean A. Mackey (“Mackey”), and Does 4 through 60 (collectively, “Defendants”) for incidents of childhood sexual assault perpetrated by Mackey against Plaintiff, while Plaintiff was a

⁵ J.C. is not Plaintiff’s actual name, but a fictitious name used to protect her privacy. (See SAC, ¶ 5.)

minor. (SAC, ¶¶ 1-2.)

Watchtower is a religious nonprofit corporation that supervised and exercised control over Plaintiff's abuser, Mackey. (SAC, ¶¶ 6-7.) West Congregation (collectively with Watchtower, "Church Defendants") is a nonprofit California corporation, owned, controlled, directed, and operated by Watchtower, which included the church, West Congregation, that Plaintiff attended and the property where the unlawful acts of childhood sexual assault occurred. (*Id.* at ¶ 11.)

Watchtower was responsible for finalizing the appointments of Elders and Ministerial Servants, including Mackey, from its headquarters in New York. (SAC, ¶¶ 7-8, 15.) The managing agents directing and setting the corporate policies of the Church Defendants was a group of individuals known as the "The Governing Body." (*Id.* at ¶ 10(a).) The Governing Body established, approved, and disseminated all the administrative policies, procedures, and programs followed by all congregations on the subject of prevention and administrative response to acts of childhood sexual abuse committed by or upon its members, including childhood sexual abuse arising from or out of the activities of members of West Congregation. (*Id.* at ¶ 10(c).)

In or around 1989, Plaintiff was sexually assaulted and/or sexually abused, and molested by Church Defendants' employee and/or agent Mackey. (SAC, ¶ 27.) Mackey sexually assaulted and/or abused Plaintiff on multiple occasions by use of the trust, position, and authority he held as a fellow member, agent, and leader of West Congregation. (*Id.* at ¶ 28.) Plaintiff would attend church sponsored events at her home, as mandated by Defendants. (*Id.* at ¶ 29.) Mackey would attend these church-sponsored events and singled Plaintiff out with the intention of grooming her for inappropriate and eventual sexual assault and abuse. (*Id.* at ¶ 30.) During these church-sponsored events, Mackey would place a blanket over himself and Plaintiff and sexually abuse and/or assault her when she was only seven years old. (*Id.* at ¶ 31.) Watchtower's policies separated parents, including Plaintiff's parents, from the youth attending these events and classes, even when the events occurred in the parents' home. (*Id.* at ¶¶ 32, 33.) Mackey's sexual assault, abuse, and molestation was "done in full view of Church Defendants' Elders, ministerial servants, and congregation members." (*Id.* at ¶ 34.)

Plaintiff was sexually assaulted, abused, and molested countless times by Mackey at Church Defendants' events over a span of a few months in 1989. (SAC, ¶ 35.) Mackey also sexually assaulted, abused, and/or molested Plaintiff's minor brother and cousin prior to abusing Plaintiff. (*Id.* at ¶ 36.) Plaintiff's parents reported the sexual assault, abuse, and molestation of Plaintiff by Mackey to Church Defendants' Elders at West Congregation. (*Id.* at ¶ 37.) However, Church Defendants' Elders attempted to conceal and cover up Mackey's sexual assaults by instructing Plaintiff's parents not to report the assault to the police, but failed to take any action against Mackey. (*Ibid.*) Plaintiff's parents then reported the assault to the police, and the Church Defendants still failed to take action against Mackey. (*Id.* at ¶ 38.)

Before, during, and after Mackey's sexual assault and/or sexual abuse, and molestation of Plaintiff, Church Defendants, "through their agents and Elders knew that

Mackey's conduct and relationship with minor children, including Plaintiff, was inappropriate, unlawful, wrongful, and/or otherwise created a risk of childhood sexual assault." (SAC, ¶ 39.) Plaintiff is informed and believes that Church Defendants maintained, and still maintain, a database from Watchtower's congregation, including West Congregation, regarding Mackey's prior abuse of Plaintiff, but their policies forbid dissemination of prior reports. (*Id.* at ¶ 40.) Elders at West Congregation confirmed that Mackey inappropriately touched, sexually assaulted and/or sexually abused and molested other children, including Plaintiff, but purposely failed to: notify or warn members and parents of the risk of sexual abuse by Mackey; limit or supervise Mackey's access to children; and notify law enforcement. (*Id.* at ¶¶ 42-44.) As a result, Mackey was able to continue his sexual assaults and/or abuse and molestation of Plaintiff and remained in good standing at West Congregation. (*Id.* at ¶¶ 45, 47(a).)

On July 12, 2024, Plaintiff filed her complaint against Defendants, asserting the following causes of action:

- 1) Sexual Assault of a Minor [against Mackey];
- 2) Intentional Infliction of Emotional Distress [against Mackey];
- 3) Negligent Hiring, Supervision, and Retention [against Defendants];
- 4) Negligence [against Does 4 through 60].

On January 26, 2026, West Congregation filed this Motion for summary judgment in its favor on the entire SAC and, in the alternative, for summary adjudication on the SAC's third and fourth causes of action. No opposition was filed in response to the Motion.

On August 17, 2026, West Congregation filed a reply underscoring that no opposition to this Motion was filed by Plaintiff. While West Congregation in its reply invites the Court to decide the Motion on the ground that Plaintiff has thereby failed to comply with the separate statement requirement, the Court declines that invitation. Instead, in accordance with the strong policy of California law to decide matters on their merits, the Court will now decide West Congregation's Motion on its merits, specifically by considering whether West Congregation has met its burden for summary judgment or summary adjudication.

Legal Standard on Motion for Summary Judgment

A motion for summary judgment "shall be granted if all the papers submitted show that there is no triable issue as to any material fact and that the moving party is entitled to a judgment as a matter of law." (Code Civ. Proc., § 437c, subd. (c).)

The "party moving for summary judgment bears an initial burden of production to make a prima facie showing of the nonexistence of any triable issue of material fact[.]" (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 850 (*Aguilar*).) "A prima facie showing is one that is sufficient to support the position of the party in question." (*Id.* at p. 851.)

If the moving party makes the necessary initial showing, the burden of production

shifts to the opposing party to make a prima facie showing of the existence of a triable issue of material fact. (*Augilar, supra*, 25 Cal.4th at p. 850.) “There is a triable issue of material fact if, and only if, the evidence would allow a reasonable trier of fact to find the underlying fact in favor of the party opposing the motion in accordance with the applicable standard of proof.” (*Ibid.*) “[I]f the court concludes that the [opposing party’s] evidence or inferences raise a triable issue of material fact, it must conclude its consideration and deny the [moving party’s] motion.” (*Id.* at p. 856.)

Throughout the process, the trial court “must consider all of the evidence and all of the inferences reasonably drawn therefrom[.]” (*Augilar, supra*, 25 Cal.4th at p. 844 [internal quotations omitted].) The moving party’s evidence is strictly construed, while the opposing party’s evidence is liberally construed. (*Id.* at p. 843.)

Request for Judicial Notice

As an initial matter, West Congregation requests the Court take judicial notice of the following:

- 1) Plaintiff’s SAC; and
- 2) West Congregation’s Answer to the SAC.

The request is **GRANTED** pursuant to Evidence Code section 452, subdivision (d).

Analysis of the Motion for Summary Judgment

I. West Congregation has met its burden of showing that there is no triable issue of material fact that West Congregation owed any duty to Plaintiff.

West Congregation argues that it is entitled to summary judgment because it did not owe any duty to Plaintiff. (Motion, p. 13:11-12.) Specifically, West Congregation asserts that Plaintiff did not attend West Congregation at any time relevant to her claim of abuse and she cannot establish a special relationship between West Congregation and Mackey, as he did not attend West Congregation at any time relevant to this matter. (UMF 12 [Bones Decl., ¶ 8].) Instead, it contends, the evidence shows that the abuse occurred at the Cambrian Park Congregation of Jehovah’s Witnesses. (UMF 8 [Paul Decl., ¶¶ 4-6].) Because there can be no finding of a special relationship, no duty is owed to Plaintiff and her negligence claims fail as a matter of law. (Motion, p. 14:7-9.)

“Where, as here, a complaint alleges injuries resulting from the criminal acts of third persons . . . the common law, reluctant to impose liability for nonfeasance, generally does not impose a duty upon a defendant to control the conduct of another, or to warn of such conduct, unless the defendant stands in some special relationship either to the person whose conduct needs to be controlled, or to the foreseeable victim of such conduct.” (*Conti v. Watchtower Bible & Tract Society of New York, Inc.* (2015) 235 Cal.App.4th 1214, 1227 [internal citations, quotations, and emphasis omitted].)

Here, West Congregation proffers the declaration of David Jon Paul (“Paul”), who states that he was both a Ministerial Servant and Elder at the Cambrian Park Congregation of Jehovah’s Witnesses⁶ from January 1974 until October 1998. (Paul Decl., ¶ 3.) Paul states that Mackey was a member of the Cambrian Park Congregation and that he personally knew Mackey the entire time he was there. (*Id.* at ¶ 4.) While Mackey was there, allegations of child sexual abuse were made against him and Paul was one of the elders selected to help him repair his relationship with Jehovah God. (*Id.* at ¶ 5.) As a result of the allegations against him, Mackey was removed from Cambrian Park Congregation in late 1990 and subsequently criminally convicted. (*Ibid.*) Paul further declares that Plaintiff was a member of Cambrian Park Congregation at the time and Mackey was alleged to have abused her. (*Id.* at ¶ 6.)

Additionally, West Congregation proffers the declaration of Allen Bones (“Bones”), an elder of West Congregation since 2019. (Bones Decl., ¶¶ 1, 6.) Bones states that he has served as the secretary of West Congregation since 2020 and manages records and documents to be filed with the State of California. (Bones Decl., ¶ 4.) Bones states that he reviewed West Congregation’s records and Mackey was not a member, agent, ministerial servant, or elder at West Congregation during the time of Plaintiff’s abuse or any other time. (*Id.* at ¶ 8.)

Based on the foregoing, West Congregation has submitted sufficient evidence to show that it did not stand in a special relationship with either Mackey or Plaintiff because neither party attended West Congregation. (E.g., *Kesner v. Superior Court* (2016) 1 Cal.5th 1132, 1149-1150 [“The existence of a duty depends upon the foreseeability of the risk and a weighing of policy considerations for and against imposition of liability.”][internal citations omitted].)

Accordingly, West Congregation meets its burden of establishing there is no triable issue of material fact as to duty. As noted above, Plaintiff has not opposed the motion. As such, West Congregation’s Motion for summary judgment is **GRANTED in its entirety**.⁷

Conclusion & Order

Defendant West Congregation of Jehovah’s Witnesses, San Jose, CA, Inc.’s Motion for Summary Judgment under Code of Civil Procedure Section 437c is **GRANTED** in favor of Defendant West Congregation of Jehovah’s Witnesses, San Jose, CA, Inc., and against Plaintiff J.C.

SO ORDERED.

⁶ According to Paul, the Cambrian Park Congregation ceased to exist in the early 2000s. (Paul Decl., ¶ 3.)

⁷ Given the Court’s ruling granting summary *judgment* in favor of West Congregation, the Court need not and does not reach West Congregation’s remaining arguments for summary *adjudication* of the third and fourth causes of action.

Date: August 28, 2026

Vincent I. Parrett
Judge of the Superior Court of California,
County of Santa Clara

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